

PRESIDENT AND VICE PRESIDENT

TWO OFFICES AND THE → PRESIDENTIAL ELECTION, VOTE VALUE → QUALIFICATIONS, OATH, TENURE, VACANCY → AID AND ADVICE, RECONSIDERATION → SEVEN PRESIDENTIAL POWER CLUSTERS → VETO AND ORDINANCE: THE

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 TWO OFFICES AND THE PARLIAMENTARY EXECUTIVE DESIGN

TWO OFFICES AND THE PARLIAMENTARY EXECUTIVE DESIGN ARTICLES 52-62, 72, 74 CONSTITUTIONAL HEAD OF STATE + ARTICLES 63-71 EX OFFICIO CHAIRMAN OF RAJYA SABHA + PARLIAMENTARY LOGIC PRESIDENT ORDINARILY ACTS ON MINISTERIAL ADVICE

VICE-PRESIDENT ORDINARILY WORKS INSIDE PARLIAMENT CURRENT DATED CONTROL 24 AUGUST 2026

CONSTITUTIONAL BASIS / ARTICLE

- PRESIDENT: ARTICLES 52-62, 72, 74 constitutional Head of State + formal Union executive power + national continuity
- VICE-PRESIDENT: ARTICLES 63-71 ex officio Chairman of Rajya Sabha + constitutional reserve for presidential vacancy

POWER / PROCEDURE

- PARLIAMENTARY LOGIC
- President ordinarily acts on ministerial advice

CHECK / LIMIT

- Vice-President ordinarily works inside Parliament
- CURRENT DATED CONTROL: 24 AUGUST 2026

FEDERAL / RIGHTS IMPACT

- Droupadi Murmu → President
- C. P. Radhakrishnan → Vice-President and Rajya Sabha Chairman.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Constitution does not use "nominal executive" as a label; that conclusion follows from Articles 53, 74 and 75 and parliamentary practice.

01

STAGE 01 PRESIDENTIAL ELECTION, VOTE VALUE AND DISPUTE ROUTE

PRESIDENTIAL ELECTION, VOTE VALUE AND DISPUTE ROUTE ELECTORAL COLLEGE ARTICLE 54 ELECTED MPS + ELECTED MLAS OF STATES ARTICLE 55 MLA VOTE VALUE 1971 CENSUS POPULATION ELECTED ASSEMBLY STRENGTH MP VOTE VALUE

ELECTORAL COLLEGE: ARTICLE 54 elected MPs + elected MLAs of States + elected MLAs of

exclude nominated MPs, nominated MLAs and State Legislative Council members

WEIGHTING: ARTICLE 55

MLA vote value → 1971 census population / elected Assembly strength / 1000

MP vote value → total MLA vote value / elected MPs

CONSTITUTIONAL BASIS / ARTICLE

- ELECTORAL COLLEGE: ARTICLE 54 elected MPs + elected MLAs of States + elected MLAs of Delhi and Puducherry
- exclude nominated MPs, nominated MLAs and State Legislative Council members

POWER / PROCEDURE

- WEIGHTING: ARTICLE 55
- MLA vote value → 1971 census population / elected Assembly strength / 1000

CHECK / LIMIT

- MP vote value → total MLA vote value / elected MPs
- COUNT proportional representation by single transferable vote + secret ballot

FEDERAL / RIGHTS IMPACT

- Article 71 → Supreme Court; vacancy does not invalidate the election.
- ELECTORAL COLLEGE: ARTICLE 54 elected MPs + elected MLAs of States + elected MLAs of Delhi and Puducherry

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Dissolution of some State Assemblies does not constitutionally justify postponing the presidential election.

02

STAGE 02 QUALIFICATIONS, OATH, TENURE, VACANCY AND REMOVAL

QUALIFICATIONS, OATH, TENURE, VACANCY AND REMOVAL PRESIDENT CITIZEN + 35 YEARS + QUALIFIED FOR LOK SENIOR-MOST AVAILABLE SUPREME COURT JUDGE FIVE-YEAR TERM; RE-ELECTION ALLOWED ARTICLE 61 EITHER HOUSE STARTS 14-DAY NOTICE ONE-FOURTH SIGNATURES

TWO-THIRDS OF TOTAL MEMBERSHIP IN EACH HOUSE VIOLATION OF CONSTITUTION

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
PRESIDENT citizen + 35 years + qualified for Lok Sabha + no office of profit oath before Chief	continues until successor enters office casual vacancy election within six months	two-thirds of total membership in each House → violation of Constitution	PRESIDENT citizen + 35 years + qualified for Lok Sabha + no office of profit oath before Chief
re-election allowed	IMPEACHMENT: ARTICLE 61 either House starts → 14-day notice → one-fourth signatures	ARTICLE 361 official-act immunity and procedural protection do not create substantive impunity.	re-election allowed

CONSTITUTIONAL BASIS / ARTICLE

- PRESIDENT citizen + 35 years + qualified for Lok Sabha + no office of profit oath before Chief
- re-election allowed

POWER / PROCEDURE

- continues until successor enters office casual vacancy election within six months
- IMPEACHMENT: ARTICLE 61 either House starts → 14-day notice → one-fourth signatures

CHECK / LIMIT

- two-thirds of total membership in each House → violation of Constitution
- ARTICLE 361 official-act immunity and procedural protection do not create substantive impunity.

FEDERAL / RIGHTS IMPACT

- PRESIDENT citizen + 35 years + qualified for Lok Sabha + no office of profit oath before Chief
- re-election allowed

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The President is entitled to the official residence and statutory emoluments; these cannot be diminished during the term.

03

STAGE 03 AID AND ADVICE, RECONSIDERATION AND BOUNDED DISCRETION

AID AND ADVICE, RECONSIDERATION AND BOUNDED DISCRETION ARTICLE 74 COUNCIL OF MINISTERS WITH PM AT HEAD AIDS AND PRESIDENT MAY REQUIRE RECONSIDERATION ONCE RECONSIDERED ADVICE BINDS COURT SITUATIONAL CHOICE HUNG LOK SABHA

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CONSTITUTIONAL BASIS / ARTICLE - PRESIDENT citizen + 35 years + qualified for Lok Sabha + no office of profit oath before Chief - re-election allowed	POWER / PROCEDURE - continues until successor enters office casual vacancy election within six months - IMPEACHMENT: ARTICLE 61 either House starts → 14-day notice → one-fourth signatures	CHECK / LIMIT - two-thirds of total membership in each House → violation of Constitution - ARTICLE 361 official-act immunity and procedural protection do not create substantive impunity.	FEDERAL / RIGHTS IMPACT - PRESIDENT citizen + 35 years + qualified for Lok Sabha + no office of profit oath before Chief - re-election allowed

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CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- ARTICLE 74 - Council of Ministers with PM at head aids and advises the President	- President may require reconsideration once reconsidered advice binds court cannot inquire into what advice was tendered - SITUATIONAL CHOICE hung Lok Sabha → identify person most likely to command confidence outgoing ministry → continuity until an alternative is formed	- NOT PERSONAL POLICY POWER - Shamsher Singh (1974): constitutional head operates through responsible government.	- ANSWER VERDICT the office can warn, encourage and require reconsideration, not create a rival executive. - ARTICLE 74

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Weighted MLA votes preserve interstate population balance, equal MP vote values balance Parliament with the States, and PR-STV converts ranked preferences into a majority mandate for one office.

04

STAGE 04 SEVEN PRESIDENTIAL POWER CLUSTERS

SEVEN PRESIDENTIAL POWER CLUSTERS APPOINTMENTS, RULES OF BUSINESS, ADMINISTRATION IN PRESIDENT'S NAME SUMMON, PROROGUE, DISSOLVE LS, ADDRESS, NOMINATE, ASSENT RECOMMENDATION ROUTES, BUDGET PRESENTATION, FINANCE COMMISSION ARTICLE 72 CLEMENCY + ARTICLE 143 REFERENCE CREDENTIALS AND TREATY FORM, SUBJECT TO CONSTITUTIONAL LAW SUPREME COMMANDER IN CONSTITUTIONAL FORM ARTICLES 352, 356 AND 360 ON CONSTITUTIONAL ADVICE

EXECUTIVE → appointments, Rules of Business, administration in President's name			
LEGISLATIVE → summon, prorogue, dissolve LS, address, nominate, assent → FINANCIAL → recommendation routes, Budget presentation, Finance Commission → JUDICIAL → Article 72 clemency + Article 143 reference			
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- EXECUTIVE → appointments, Rules of Business, administration in President's name - LEGISLATIVE → summon, prorogue, dissolve LS, address, nominate, assent	- FINANCIAL → recommendation routes, Budget presentation, Finance Commission - JUDICIAL → Article 72 clemency + Article 143 reference	- DIPLOMATIC → credentials and treaty form, subject to constitutional law - MILITARY → Supreme Commander in constitutional form	- EMERGENCY → Articles 352, 356 and 360 on constitutional advice - CONTROL formal breadth is ordinarily exercised through ministerial responsibility and review.

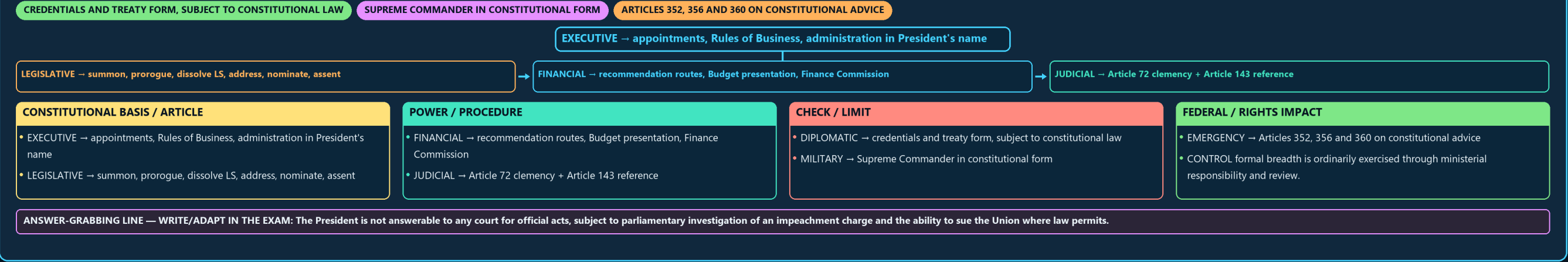
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The President is not answerable to any court for official acts, subject to parliamentary investigation of an impeachment charge and the ability to sue the Union where law permits.

05

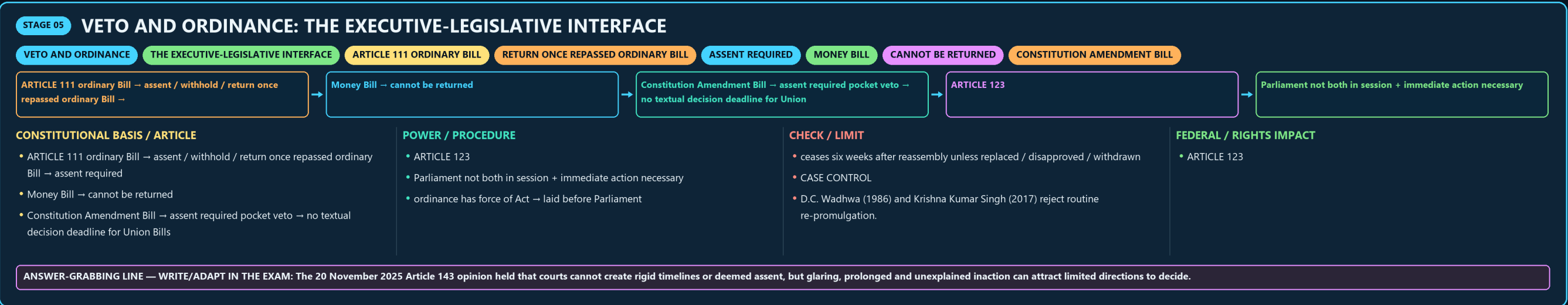
STAGE 05 VETO AND ORDINANCE: THE EXECUTIVE-LEGISLATIVE INTERFACE

VETO AND ORDINANCE THE EXECUTIVE-LEGISLATIVE INTERFACE ARTICLE 111 ORDINARY BILL RETURN ONCE REPASSED ORDINARY BILL ASSENT REQUIRED MONEY BILL CANNOT BE RETURNED CONSTITUTION AMENDMENT BILL

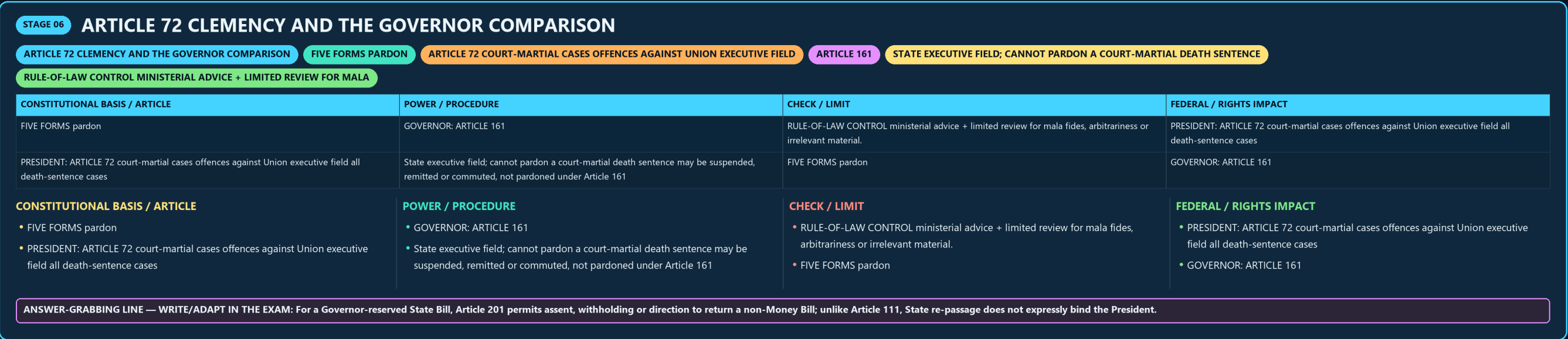
ARTICLE 111 ordinary Bill → assent / withhold / return once repassed ordinary Bill → Money Bill → cannot be returned → Constitution Amendment Bill → assent required pocket veto → no textual decision deadline for Union → ARTICLE 123 → Parliament not both in session + immediate action necessary			
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 111 ordinary Bill → assent / withhold / return once repassed ordinary Bill → assent required	- ARTICLE 123 - Parliament not both in session + immediate action necessary	- ceases six weeks after reassembly unless replaced / disapproved / withdrawn - CASE CONTROL	ARTICLE 123



05



06



PRESIDENT: ARTICLE 72 court-martial cases offences against Union executive field all death-sentence cases	State executive field; cannot pardon a court-martial death sentence may be suspended, remitted or commuted, not pardoned under Article 161	Irrelevant material. FIVE FORMS pardon	Death-sentence cases GOVERNOR: ARTICLE 161
CONSTITUTIONAL BASIS / ARTICLE - FIVE FORMS pardon - PRESIDENT: ARTICLE 72 court-martial cases offences against Union executive field all death-sentence cases	POWER / PROCEDURE - GOVERNOR: ARTICLE 161 - State executive field; cannot pardon a court-martial death sentence may be suspended, remitted or commuted, not pardoned under Article 161	CHECK / LIMIT - RULE-OF-LAW CONTROL ministerial advice + limited review for mala fides, arbitrariness or irrelevant material. - FIVE FORMS pardon	FEDERAL / RIGHTS IMPACT - PRESIDENT: ARTICLE 72 court-martial cases offences against Union executive field all death-sentence cases - GOVERNOR: ARTICLE 161
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: For a Governor-reserved State Bill, Article 201 permits assent, withholding or direction to return a non-Money Bill; unlike Article 111, State re-passage does not expressly bind the President.			

07

STAGE 07

VICE-PRESIDENT: ELECTION, REMOVAL, CHAIR AND ACTING ROLE

ELECTION, REMOVAL, CHAIR AND ACTING ROLE

ELECTION MEMBERS OF BOTH HOUSES, ELECTED AND NOMINATED; STATE

RAJYA SABHA RESOLUTION BY MAJORITY OF ALL THEN MEMBERS

AGREED BY LOK SABHA

14-DAY NOTICE NOT IMPEACHMENT; NO 'VIOLATION OF CONSTITUTION' GROUND

CHAIRMAN PROCEDURE, DISCIPLINE AND CASTING VOTE; NO ORDINARY FIRST

TENTH SCHEDULE ADJUDICATION IS REVIEWABLE; OWN-REMOVAL DEBATE USES SPECIAL

ACTING PRESIDENT DISCHARGES PRESIDENTIAL FUNCTIONS DURING VACANCY

ELECTION members of both Houses, elected and nominated; State legislatures excluded

Rajya Sabha resolution by majority of all then members

→ agreed by Lok Sabha → 14-day notice not impeachment; no 'violation of Constitution' ground is

→ CHAIRMAN procedure, discipline and casting vote; no ordinary first vote

CONSTITUTIONAL BASIS / ARTICLE

- ELECTION members of both Houses, elected and nominated; State legislatures excluded
- Rajya Sabha resolution by majority of all then members

POWER / PROCEDURE

- agreed by Lok Sabha → 14-day notice not impeachment; no 'violation of Constitution' ground is required
- CHAIRMAN procedure, discipline and casting vote; no ordinary first vote

CHECK / LIMIT

- Tenth Schedule adjudication is reviewable; own-removal debate uses special arrangement
- ACTING PRESIDENT discharges presidential functions during vacancy / inability; separate office rules apply.

FEDERAL / RIGHTS IMPACT

- ELECTION members of both Houses, elected and nominated; State legislatures excluded
- Rajya Sabha resolution by majority of all then members

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The Vice-President is elected by all members of both Houses through PR-STV, excluding State legislators and thereby reflecting the office's primarily Union parliamentary character.

08

STAGE 08

CONVENTIONS, CASES, TRAPS AND THE ANSWER SPINE

CONVENTIONS, CASES, TRAPS AND THE ANSWER SPINE

CONVENTION ROUTES

SHAMSHER SINGH (1974)

CONSTITUTIONAL HEAD

KEHAR SINGH (1988)

MARU RAM (1980)

CLEMENCY ON ADVICE WITH BOUNDED REVIEW

KRISHNA KUMAR SINGH (2017)

CASE / CONVENTION ROUTES

→ Shamsher Singh (1974) → constitutional head

→ Kehar Singh (1988) / Maru Ram (1980) → clemency on advice with bounded review

→ Krishna Kumar Singh (2017) → ordinance limits hung House → confidence, not personal preference

→ PRELIMS FIREWALL

CONSTITUTIONAL BASIS / ARTICLE

- CASE / CONVENTION ROUTES
- Shamsher Singh (1974) → constitutional head
- Kehar Singh (1988) / Maru Ram (1980) → clemency on advice with bounded review

POWER / PROCEDURE

- Krishna Kumar Singh (2017) → ordinance limits hung House → confidence, not personal preference
- PRELIMS FIREWALL
- President and Vice-President colleges are different

CHECK / LIMIT

- President impeachment != Vice-President removal six-month vacancy rule applies to President, not Vice-President
- Money Bill cannot be returned; Amendment Bill requires assent
- MAINS SPINE constitutional position → exact power → advice/procedure → case → bounded discretion

FEDERAL / RIGHTS IMPACT

- accountability → sentinel without a rival popular mandate.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Nominated MPs may participate in impeachment although they do not elect the President; State MLAs elect but do not impeach.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

A1. WHY THE PRESIDENT IS NEITHER RULER NOR RUBBER

A2. ELECTION METHOD FOLLOWS OFFICE DESIGN

INDIA AND FRANCE

A3. INDIA AND USA

PARDON POWER

A4. ORDINANCES AND DEMOCRATIC LEGITIMACY

A5. VETO, ASSENT DELAY AND CONSTITUTIONAL TIME

OPTIONAL DOCTRINE / CASE

A1. Why the President is neither ruler nor rubber stamp

A2. Election method follows office design: India and France

A3. India and USA: pardon power

A4. Ordinances and democratic legitimacy

ADVANCED LIMIT

A5. Veto, assent delay and constitutional time

A6. Clemency as mercy, public power and rule of law

A7. Chairmanship, federal deliberation and neutrality

A8. Reform matrix

COMPARATIVE NUANCE

A9. Mains answer architecture

[ANALYSIS] "Rubber stamp" is too strong because constitutional form can delay, warn and force reconsideration

"Independent executive" is equally wrong because reiterated advice binds.

[ANALYSIS] Bagehot's rights - to be consulted, to encourage and to warn - illuminate the office, but Indian

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.